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Proposed legislation would help regulate use of automated license plate readers

As concerns continue to mount over automated license plate readers, a new bill in the General Assembly would rein in the technology.

By [Kate Nuechterlein](#)

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CHARLOTTESVILLE, Va. (WVIR) - As concerns continue to mount over automated license plate readers (ALPRs) and how law enforcement can use them to track drivers, a [bill](#) has been proposed in the General Assembly to rein in the technology.

“Automatic license plate readers are a tool of mass surveillance, so they capture not only the license plate as the name suggests, but the make and model of the vehicle as well,” said Ruby Cherian, an attorney with the Legal Aid Justice Center in Charlottesville.

Cherian says there are currently zero state laws regulating the use of ALPRs in Virginia. Some have objected to these cameras due to privacy [concerns](#).

“[The readers] can reveal personal information about someone,” said Cherian. “For instance, if there’s ones placed outside of a doctor’s office, or a church, it’s really easy to tell the comings and goings of people, especially if you have a lot of cameras that cover a city.”

Charlottesville Police Department has [ten Flock cameras](#), which are scattered across the city on different intersections. According to the city’s Flock transparency portal, these cameras have detected 105,065 cars in the past 30 days and prompted police to conduct 133 searches in that same time period.

Police Chief Michael Kochis says Charlottesville’s local Flock policy is one of the strictest in the state, and that they are already in line with what HB2724 would require.

“I am not a big fan of technology,” said Chief Kochis. “I fear, at times, as a profession, we may be moving faster than our communities understand it, and so why for us, it was so important to take our time.”

Charlottesville only holds onto Flock data for seven days, which is well within the bill’s proposed 30-day retention period. They also only use the cameras for criminal justice purposes, such as homicides, missing persons, or stolen vehicles.

“The amount of stolen vehicles we’ve recovered from the use of these cameras have been staggering, and if you think about the importance of recovering a stolen vehicle, we’re talking about someone who don’t have a vehicle to go to work anymore,” said Kochis. “Every day that vehicle is gone, they’ve got to figure out another way to go to work or pick up their kids.”

Cherian says that CPD’s local policy entails a monthly public audit with information about how

In Albemarle County, police are relaunching plate reader software for the first time in about a decade. Jason Marden, Special Operations Commander for ACPD, says these are different from the Flock cameras because they are mobile and part of the cameras already installed in their cars.

“The officer will then be able to look at that, find the vehicle, and then run that through the normal procedure,” said Marden. “There’s still a lot of checks and balances along the way throughout the system to make sure it’s used properly.”

ACPD will be activating this software, which detects license plates in real time as officers drive, in five of their cars. Each one costs \$500 per year.

“The system that we’re operating is really just getting extra eyes and getting more than what the officer can watch,” said Marden.

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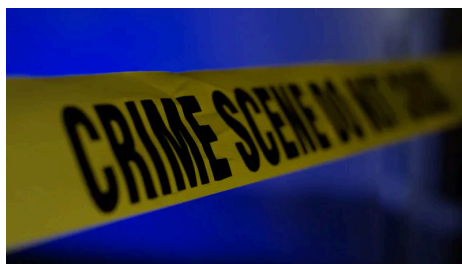
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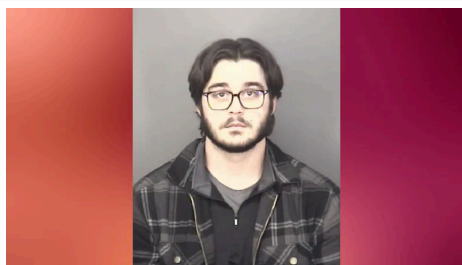




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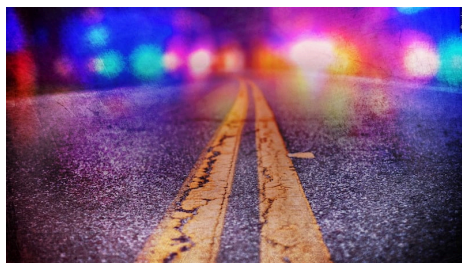
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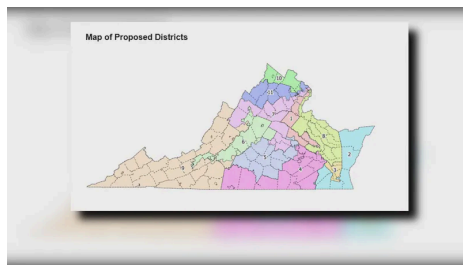




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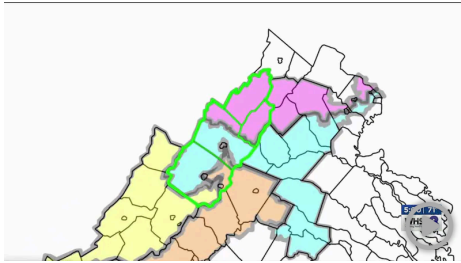
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